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Case Number: 23PSCV03268 Hearing Date: September 21, 2026 Dept: G

Plaintiff/Cross-Defendant

Carlos Olivetti's Motion for Summary Judgment, or in the Alternative, Summary
Adjudication

Respondent:

Defendant/Cross-Complainant Mike Nijjar and Cross-Complainants Group I El Monte
Properties Ltd. and Simple Capital Inc.

TENTATIVE

RULING

Plaintiff/Cross-Defendant

Carlos Olivetti's Motion for Summary Judgment, or in the Alternative, Summary
Adjudication is DENIED.

BACKGROUND

This

is an action for breach of contract. On

March 23, 1999, defendant/cross-defendant Mike Nijjar (Nijjar) and
plaintiff/cross-defendant Carlos Olivetti (Olivetti) allegedly entered into a
partnership/joint venture, memorialized through a handwritten document, though
which Nijjar would purchase residential real property (the Bryant Property) and
take title in the name of defendant/cross-complainant Group I El Monte
Properties Ltd. (Group I); Nijjar would pay the purchase price, closing costs,
and repair costs on the Bryant Property; Olivetti and his mother would reside
in the Bryant Property; Olivetti would receive the rental income from the other
residential units on the Bryant Property; Olivetti would reimburse Nijjar for

the purchase price, closing costs, and repair costs from the rental income; and if the Bryant Property were ever sold or refinanced, Nijjar and Olivetti would split evenly any gain above the purchase price or the market value at the time of refinancing. On April 23, 1999, Nijjar allegedly purchased the Bryant Property and held title in the name of Group I.

On

July 24, 2013, Olivetti allegedly acquired the Bryant Property and signed a promissory note secured by deed of trust in favor of Nijjar using the Bryant Property as collateral. In late 2020, Olivetti allegedly requested that Nijjar transfer title in the Bryant Property from Group I to Olivetti, and Nijjar allegedly agreed on the condition that the 2013 promissory note be amended to add that it was secured by deed of trust and to reaffirm that Nijjar and Olivetti would split evenly any gain above the purchase price if the Bryant Property were ever sold or refinanced. On January 22, 2021, Nijjar and Olivetti allegedly signed the 2021 amendment to the 2021 promissory note, and Nijjar allegedly transferred title in the Bryant Property from Group I to Olivetti. On May 19, 2023, Nijjar allegedly assigned the 2013 promissory note to cross-complainant Simple Capital Inc. (Simple Capital). On July 21, 2023, Olivetti allegedly sent Nijjar a demand letter for an accurate payoff amount so that Olivetti could refinance the Bryant Property.

On

October 23, 2023, Olivetti filed the Complaint. On October 3, 2025, Olivetti filed the operative Second Amended Complaint, alleging causes of action for (1) breach of contract, (2) fraud, (3) unfair business practices, (4) cancellation of instrument, (5) declaratory relief, (6) usury, and (7) omission of joint venture terms in security instrument.

On

January 5, 2024, Nijjar, Group I, and Simple Capital (collectively, Cross-Complainants) filed the Cross-Complaint. On February 21, 2025, Cross-Complainants filed the operative Amended Cross-Complaint, alleging causes of action for (1) breach of contract, (2) fraud, (3) constructive trust, (4) cancellation of deed, (5) declaratory relief, and (6) breach of fiduciary duty.

On

June 22, 2026, Olivetti filed this motion for summary judgment, or in the

alternative, summary adjudication. On

September 1, 2026, Cross-Complainants filed the opposition, and on September 10, 2026, Olivetti filed the reply.

The

motion is set for hearing on September 21, 2026.

REQUESTS

FOR JUDICIAL NOTICE

Cross-Complainants

request that the court take judicial notice of two grant deeds, a deed of trust, and an assignment of deed, which are all recorded with the Los Angeles County Recorder's Office. The court may take judicial notice of facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination. (See Evid. Code, § 452, subd. (h).)

Thus,

the court takes judicial notice of the requested records.

EVIDENTIARY

OBJECTIONS

Cross-Complainants object to the exhibits attached

to the motion and portions of Olivetti's declaration. The following objections are SUSTAINED: 1–3 (lack foundation and authentication). The following objections are OVERRULED: 4–16.

ANALYSIS

Olivetti

moves for judgment on the first, third, fifth, and sixth causes of action (erroneously referred to as the first, second, third, and fourth causes of action, respectively). For the following reasons, the motion is DENIED.

Legal

Standard

A

motion for summary judgment or adjudication provides “courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In a motion for summary judgment or summary adjudication, “the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) It must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, quoting Code Civ. Proc., § 437c, subd. (c).) A defendant moving for summary judgment or summary adjudication “has met [their] burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the opposing party must produce substantial responsive evidence. (See Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

Discussion

First

Cause of Action: Breach of Contract

Olivetti

argues that he is entitled to judgment on the cause of action for breach of contract. The court disagrees.

To

state a cause of action for breach of contract, the plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Moving

Party’s Burden

Olivetti

meets his initial burden of demonstrating that Nijjar breached their contract. Here, for the first element, Olivetti presents testimonial evidence of the 2013 promissory note. (See UMF No. 1; but see Nijjar Obj. No. 1.) For the second element, Olivetti also presents testimonial evidence that he paid monthly installments pursuant to the agreement for eight (8) years. (See UMF No. 3.) For the third and fourth elements, Olivetti’s declaration states that Nijjar refused to allow him to pay off the loan according to their original agreement, and as a result, Olivetti could not complete the refinancing process. (See UMF Nos. 10–11.) Thus, Olivetti’s evidence demonstrates that Nijjar breached their contract.

Since

Olivetti establishes that Nijjar breached their contract, the burden shifts to Nijjar to show a triable issue of material fact that he did not breach the contract. (See Sangster, supra, 68 Cal.App.4th at 166.)

Opposing

Party’s Burden

Nijjar

meets his burden of establishing a triable issue of fact whether he breached the contract. As a preliminary matter, the court notes that it sustained Nijjar’s objection to Olivetti’s Exhibit A, the purported 2013 promissory note, based on a lack of foundation and authentication. (See Nijjar Obj. No. 1.)

For

the first element, Nijjar presents testimonial and documentary evidence demonstrating that he and Olivetti entered into a joint venture in 1999 and that the 2013 promissory note was produced consistent with the original 1999 agreement. (See UMF No. 1.) Nijjar does not dispute that he refused Olivetti's request to pay off the loan under the terms of the 2013 promissory note. (See UMF No. 10.) However, the court finds there is still a triable issue concerning whether Nijjar's refusal was a breach of the 2013 promissory note in light of the original 1999 agreement and 2021 amendment. (See UMF Nos. 11–13.) Thus, there is a triable issue of material fact whether Nijjar breached the contract. As such, the court determines Olivetti is not entitled to judgment on the cause of action for breach of contract as a matter of law.

Therefore,

the motion for summary adjudication is DENIED as to the first cause of action for breach of contract.

Third

Cause of Action: Unfair Business Practices

Olivetti

argues that he is entitled to judgment on the cause of action for unfair business practices. The court disagrees.

A

claim for unfair business practices requires a plaintiff to establish that the defendant engaged in an "unlawful, unfair[,] or fraudulent business act or practice and unfair, deceptive, untrue[,] or misleading advertising." (Bus. & Prof. Code, § 17200.)

Moving

Party's Burden

Olivetti

meets his burden of demonstrating that Nijjar engaged in a fraudulent business act. Here, Olivetti presents testimonial evidence that he requested a payoff statement from Nijjar but was told he still owed money from a shared equity provision to which he did not agree. (See UMF Nos. 5, 10; see also UMF Nos. 6–7; but see Nijjar Objs. Nos. 1–2.) Thus, Olivetti's evidence demonstrates that Nijjar engaged in a fraudulent business act.

Since

Olivetti establishes that he did not agree to the shared equity provision, the burden shifts to Nijjar to show a triable issue of material fact that he did not engage in a fraudulent business act.

(See Sangster, supra, 68 Cal.App.4th at 166.)

Opposing

Party's Burden

Nijjar

meets his burden of establishing a triable issue of material fact that Olivetti agreed to the shared equity provision. Nijjar presents testimonial and documentary evidence demonstrating that Olivetti agreed to and signed the 2021 amendment to the 2013 promissory note, which provides that Nijjar and Olivetti will split evenly any gain above the purchase price if the Bryant Property is refinanced.

(See UMF Nos. 5–7.) Thus, the court finds there is a triable issue of material fact whether Nijjar engaged in a fraudulent business act. As such, the court determines Olivetti is not entitled to judgment on the cause of action for unfair business practices as a matter of law.

Therefore,

the motion for summary adjudication is DENIED as to the third cause of action for unfair business practices.

Fifth

Cause of Action: Declaratory Relief

Olivetti

argues that he is entitled to judgment on the cause of action for declaratory relief. The court disagrees.

“To

qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations.” (Jolley

v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, cleaned up.)

Olivetti

fails to meet his initial burden of demonstrating that he is entitled to declaratory relief. As a preliminary matter, the court finds this action presents a proper subject of declaratory relief and that an actual controversy exists relating to the parties' rights and obligations. (See Jolley, *supra*, 213 Cal.App.4th at 909; see also Code Civ. Proc., § 1060, providing that "[a]ny person interested under a written instrument . . . or under a contract . . . in respect to, in, over or upon property . . . may . . . bring an original action . . . for a declaration of [their] rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.")

However, Olivetti does not present evidence in support of his contentions relating to the exhibits attached to the motion. (See UMF Nos. 7–9; see also Nijjar Objs. Nos. 1–3.)

Since

Olivetti fails to establish that he is entitled to declaratory relief, the burden does not shift to Nijjar to demonstrate a triable issue of material fact. (See Sangster, *supra*, 68 Cal.App.4th at 166.)

Therefore,

the motion for summary adjudication is DENIED as to the fifth cause of action for declaratory relief.

Sixth

Cause of Action: Usury

Olivetti

argues that he is entitled to judgment on the cause of action for usury. The court disagrees.

By

initiative in 1918, the people of the State enacted a comprehensive usury law that is set forth in an uncoded statute; the usury prohibition was later incorporated into the California Constitution, but the 1918 statute remains in full force today to the extent it does not conflict with the Constitution. (See *Creative Ventures, LLC v. Jim Ward & Associates* (2011) 195 Cal.App.4th 1430, 1441, citing the uncoded

statutes as West's Civ. Code, § 1916-1 et seq.)

There are two remedies available to borrowers who have paid interest under a usurious loan agreement. A borrower who pays interest at a usurious rate may recover treble the amount paid, "providing such action shall be brought within one year after such payment or delivery." (Ibid., citing West's Civ. Code, § 1916-3, subd. (a).)

"The borrower also retains the common law right as a party to an illegal contract to bring an action for money had and received to recover usurious interest paid within two years of the suit." (Ibid., internal citation omitted.)

For purposes of the usury law, the interest charged is computed by adding the stated interest rate to any bonus the borrower must pay in addition; if the interest rate plus the bonus exceeds the statutory limit, the loan is usurious. (See *Creative Ventures, LLC*, supra, 195 Cal.App.4th at 1441, internal citation omitted.) Absent an exception, the maximum allowable interest rate for consumer loans is 10% per year. (See Cal. Const, art. XV, § 1, subd. (2).) For non-consumer loans, the interest rate can bear the maximum of whichever is greater between either: (a) 10% per annum; or (b) the federal discount rate plus 5%. (See Cal. Const., art. XV, § 1, subd. (2).) In the absence of an agreement between the parties as to what is the rate of interest, the law imposes a rate of 7%. (See Cal. Const., art. XV § 1.)

Hare, Olivetti fails to meet his initial burden of demonstrating that Nijjar engaged in usury. "This is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, it does not exist." (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337.)

The Court of Appeal clarified, however, that the "it" in the Golden Rule refers to the material fact and not the evidence in support of that fact. (*Parkview Villas Assn., Inc. v. State Farm Fire and Casualty Co.* (2005) 133 Cal.App.4th 1197, 1214, stating that "the undisputed material fact . . . must appear in the separate statement or be disregarded, not the underlying evidence supporting the fact"; see also *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315, instructing the trial court to "consider all the evidence submitted, except the court may ignore evidence not disclosed in moving party's separate

statement of undisputed facts” but rejecting “the absolute prohibition against consideration of nonreferenced evidence.”)

Since Olivetti’s separate statement does not contain any undisputed material facts about the payment of interest, Olivetti fails to meet his burden. (See UMF Nos. 1–13.)

Since

Olivetti fails to establish that Nijjar charged usurious interest, the burden does not shift to Nijjar to demonstrate that he did engage in usury. (See Sangster, *supra*, 68 Cal.App.4th at 166.)

Therefore,

the motion for summary adjudication is DENIED as to the sixth cause of action for usury.

Accordingly,

the motion for summary judgment is DENIED.

CONCLUSION

For

these reasons, the motion for summary judgment, or in the alternative, summary adjudication, is DENIED.